

BEFORE THE IOWA BOARD OF SOCIAL WORK

RE:
Social Worker Independent Level
License of

DAVID STEENSON
License No. 02599
Respondent

CASE NO. 20-0283

**COMBINED STATEMENT OF
CHARGES, SETTLEMENT
AGREEMENT, AND FINAL ORDER**

COME NOW the Iowa Board of Social Work ("Board") and David Steenson ("Respondent"), 1702 Marella Trl, Des Moines IA 50310, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154C, and 272C, and 645 IAC 283.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with engaging in a conflict of interest pursuant to 645 IAC 282.2(8)"b"(4).

B. FACTUAL CIRCUMSTANCES

2. Respondent holds social worker independent level license number 02599, which is currently active through December 31, 2022.
3. Respondent asked a client if he could photograph the client's face so he could use it to create a painting.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

4. The Board has jurisdiction over the parties and the subject matter of this proceeding.
5. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.
6. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's

action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

7. Respondent acknowledges that he has the right to be represented by counsel on this matter.

8. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

9. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

10. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

11. This Order shall not be binding as to any new complaints received by the Board.

12. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

13. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

14. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

15. Respondent is **CITED** for taking unfair advantage of a professional relationship to further the licensee's personal interests and **WARNED** that future violations may result in further disciplinary action.

16. Respondent agrees to destroy any artwork, including any pictures of such artwork, that depicts or uses the likeness of any client. Respondent must submit an attestation of destruction to the Board within thirty (30) days.

17. Within thirty (30) days, Respondent shall pay a **CIVIL PENALTY** in the amount of one thousand dollars (\$1,000). The check shall be made payable to the "Treasurer of Iowa" and shall be deposited in the general fund.

18. Within sixty (60) days, Respondent shall complete the Professional Boundaries and Ethics course offered by PBI Education, which consists of twenty-four (24) hours of **CONTINUING EDUCATION**. Respondent shall submit a certificate of completion to the

Board as proof of completion of this requirement. These hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours for license renewal.

19. The civil penalty should be mailed to the Iowa Board of Social Work, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319. All documents should be emailed to Tony.Alden@idph.iowa.gov.

20. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC 13 and 283.

1 March 2021

Date



DAVID STEENSON
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Social Work on May 10, 2021.

/s/ Tony Alden

Tony Alden, Board Executive
Iowa Board of Social Work